

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV2300340

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: TAMARA WATKINS

vs.

DEFENDANT: PRICE-SIMMS, INC., ET
AL

NATURE OF PROCEEDINGS: HEARING – OTHER: COMPLIANCE HEARING

RULING

This matter is on for a compliance hearing following this Court's February 24, 2026 order granting final approval of the class action settlement. Plaintiffs have submitted declarations regarding the disbursement of the settlement funds, which indicate that all disbursements have been made and that there are no outstanding issues. No objections have been lodged. Accordingly, unless objections are lodged at the hearing, the court finds compliance with the terms of settlement.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHnzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2301619

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: DEVIN KENNEDY TAYLOR

VS

DEFENDANT: ERNEST WARE III, ET AL

NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff Taylor (“Taylor”) filed a motion to compel against Defendant Ware (“Ware”) asserting that Ware had failed to provide responses to her requests for admission and requests for production of documents. She also requested sanctions.

Plaintiff asserts that on April 14, 2026 and April 15, 2026, she served Defendants with Requests for Admission, Set Three and Requests for Production of Documents. She did not file a Separate Statement. Nor did Taylor attach a copy of the discovery propounded. Taylor alleges that no responses were served.

As set forth in Exhibits E and F to the Du Declaration, Ware served his verified responses to this discovery on May 18, 2026, which appear to be timely under Code of Civil Procedure section 1010.6(a)(1)(B).

Taylor has not filed a reply and does not otherwise rebut Ware’s assertion of timeliness. On this basis, the motion is denied.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0000673

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: ASHLEY SHAH

vs.

DEFENDANT: NITIN SHAH, ET AL

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL ANSWERS TO
INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM
2) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM
3) MOTION – ADMISSIONS – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff Ashley Shah (“Plaintiff”) file a motion to compel responses to Plaintiff’s Form Interrogatories, Set Two, and Plaintiff’s Supplemental Request for Production of Documents, and Supplemental Interrogatories. Plaintiff also filed a motion to deem Requests for Admission admitted. Plaintiff also requests sanctions in the amount of \$3,660. Defendant was served with notice of these motions, including the Court’s notice of a continuance from August 7, 2026 to August 26, 2026. No opposition was filed.

A failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54, subd. (c).) Failure to oppose a motion may also lead to the presumption that [plaintiff] has no meritorious arguments. (See *Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal. App. 3d 481, 489, disapproved of by *Garcia v. McCutchen* (1997) 16 Cal.4th 469, on other grounds.)

The Court grants the motions in light of the non-opposition. However, in light of the non-opposition, the Court deems 6 hours of time to be reasonable instead of 8 hours. Sanctions are therefore ordered in the amount of \$2,700 to be paid within 30 days of service of this order. Failure to comply with this order and any previous orders may lead to further sanctions in this matter.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in

accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0004568

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JAVIER ALVARADO vs. DEFENDANT: STAYPINEAPPLE HOTELS INC., ET AL.	
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NATURE OF PROCEEDINGS: 1) MOTION – ATTORNEY’S FEES
2) MOTION – OTHER: APPROVAL FOR CLASS ACTION SETTLEMENT

RULING

The Court grants Plaintiff’s unopposed motion for attorney’s fees in the amount of \$150,000 and reimbursement of \$12,876 in costs. The amount of time expended in litigating this case is approximately 271.3 total hours and the fee amount represents 80% of counsel’s lodestar before counting additional time required to oversee distribution, attend the Court’s hearing and complete settlement. The Court therefore, finds the amount requested to be reasonable.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26//26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008353

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: MARK ALLEN

vs.

DEFENDANT: CITY OF SAN RAFAEL

NATURE OF PROCEEDINGS: MOTION – OTHER: AUGMENT ADMINISTRATIVE
RECORD

RULING

Appearances are required.

Petitioner Mark Allen’s (“Petitioner”) Motion to Augment the Administrative Record is
GRANTED in part.

BACKGROUND

This case (“Merrydale Road Case”), challenges the city of San Rafael’s (“the City” or
“Respondent”) approval of the resolutions approving the Affordable Housing Agreement with
the County and the City’s purchase of 350 Merrydale Road.

The relevant history is as follows:

On November 17, 2025, the City Council for the City of San Rafael took several
legislative actions to alleviate the homeless crisis it currently faces. The Council’s actions
included the following:

1. Adoption of a resolution declaring a shelter crisis, pursuant to Government
Code section 8698, et seq.;
2. Adoption of an urgency ordinance, and the first reading of a regular
ordinance, approving reasonable local standards and procedures for
homeless shelters pursuant to the same Government Code provisions;
3. Adoption of a resolution authorizing the City to purchase the property at
350 Merrydale Road for the purpose of developing both an interim
homeless shelter to house up to 65 individuals, as well as to eventually
develop the site with up to 80 units of permanent affordable housing; and

4. Adoption of a resolution approving an “Affordable Housing Agreement” between the City and Marin County, under which the County granted to the City \$8 million to fund the City’s acquisition of 350 Merrydale Road and its development of affordable housing on that site.

(See generally, Administrative Record (“AR”), 1:7-12, 76-102.) The City Council found each of these actions was exempt from CEQA. The City filed its Notice of Exemption the following day, on November 18, 2025. (AR 1:7-75.) The alternative CEQA exemptions the City identified included statutory exemptions applicable to homeless shelters and “low barrier navigation centers.” (AR 1:10-12.) In addition, the City prepared a 33-page study dated November 3, 2025, documenting how the project qualified for CEQA exemptions applicable to projects consistent with its General Plan (CEQA Guidelines § 15183) and to infill development projects (CEQA Guidelines § 15332). (AR 1:13-46.)

On November 26, 2025, Petitioner filed the present action, *Allen v. City of San Rafael*, Case No. CV0008353.

On December 1, 2025, the Council then had the second reading of, and adopted, the ordinance which was then codified as Ordinance No. 2057. (AR2 1:9902-9909.) On December 30, 2025, Petitioner filed the related action, *Allen v. City of San Rafael*, Case No. CV0008721 challenging Ordinance No. 2057 (“Ordinance Case”).

The City has since prepared and certified the Administrative Records for both related actions, lodging them with the Court on June 17, 2026. The Administrative Record for both cases consists of Volumes 1 through 51, Bates numbered AR 00007 through 09847, and is cited herein as “AR” followed by the volume and page numbers. The Administrative Record for the Ordinance Case also includes one additional volume of documents containing documentation from November 18 through December 1, 2026, Bates numbered 09900 through 09956. That additional volume is referred to as “AR2.”

Pursuant to the stipulation of the parties, the Court has coordinated both related actions, with simultaneous briefing schedules and a joint hearing on the merits scheduled for November 18, 2026, at 1:30 p.m. In the meantime, Petitioner has filed Motions to Augment the Administrative Record in both cases.

LEGAL STANDARD

The contents of the administrative record in a CEQA case are governed by Public Resources Code section 21167.6(e). (*San Francisco Tomorrow v. City and County of San Francisco* (2014) 228 Cal.App.4th 1239, 1258.) Section 21167.6(e) states that the administrative record shall include:

- (1) All project application materials.
- (2) All staff reports and related documents prepared by the respondent public agency with respect to its compliance with the substantive and procedural requirements of this division and with respect to the action on the project.

(3) All staff reports and related documents prepared by the respondent public agency and written testimony or documents submitted by any person relevant to any findings or statement of overriding considerations adopted by the respondent agency pursuant to this division.

(4) Any transcript or minutes of the proceedings at which the decision-making body of the respondent public agency heard testimony on, or considered any environmental document on, the project, and any transcript or minutes of proceedings before any advisory body to the respondent public agency that were presented to the decision-making body before action on the environmental documents or on the project.

(5) All notices issued by the respondent public agency to comply with this division or with any other law governing the processing and approval of the project.

(6) All written comments received in response to, or in connection with, environmental documents prepared for the project, including responses to the notice of preparation.

(7) All written evidence or correspondence submitted to, or transferred from, the respondent public agency with respect to compliance with this division or with respect to the project.

(8) Any proposed decisions or findings submitted to the decision-making body of the respondent public agency by its staff, or the project proponent, project opponents, or other persons.

(9) The documentation of the final public agency decision, including the final environmental impact report, mitigated negative declaration, or negative declaration, and all documents, in addition to those referenced in paragraph (3), cited or relied on in the findings or in a statement of overriding considerations adopted pursuant to this division.

(10)(A)(i) Any other written materials relevant to the respondent public agency's compliance with this division or to its decision on the merits of the project, including the initial study, any drafts of any environmental document or portions of the initial study or drafts that have been released for public review, and copies of studies or other documents relied upon in any environmental document prepared for the project and either made available to the public during the public review period or included in the respondent public agency's files on the project, and all internal agency communications, including staff notes and memoranda related to the project or to compliance with this division, but not including communications that are of a logistical nature, such as meeting invitations and scheduling communications, except that any material that is subject to privileges contained in the Evidence Code, or exemptions contained in the California Public

Records Act (Division 10 (commencing with Section 7920.000) of Title 1 of the Government Code), shall not be included in the record of proceedings under this paragraph, consistent with existing law.

Section 21167.6(e) “contemplates that the administrative record will include pretty much everything that ever came near a proposed development or to the agency's compliance with CEQA in responding to that development.” (*County of Orange v. Superior Court* (“*County of Orange*”) (2003) 113 Cal.App.4th 1, 8.)

The trial court makes the determination of the completeness of the administrative record. (*Madera Oversight Coalition, Inc. v. County of Madera* (2011) 199 Cal.App.4th 48, 63, disapproved on other grounds by *Neighbors for Smart Rail v. Exposition Metro Line Construction Authority* (2013) 57 Cal.4th 439.) Specifically, the trial court resolves disputes between the parties about what should be included in, or excluded from, the administrative record. (*Ibid.*)

In CEQA cases, the general rule is that a hearing on the petition for writ of mandamus is conducted solely on the record of the proceeding before the administrative agency. (*Toyota of Visalia v. New Motor Vehicle Bd.* (1987) 188 Cal. App.3d 872, 881; see *World Business Academy v. California State Lands Commission* (2018) 24 Cal.App.5th 476, 494.) The court can only admit additional evidence in limited circumstances. Specifically, extra-record evidence may be considered only if it is shown that (1) the evidence could not with reasonable diligence have been presented at the administrative hearing, or (2) was improperly excluded at that hearing. (*Fairfield v. Superior Court of Solano County* (1975) 14 Cal. 3d 768, 771-72; see e.g. *W. States Petroleum Assn. v. Superior Ct.* (1995) 9 Cal.4th 559, 578.) In addition, extra-record evidence is admissible only if it relevant. (*Id.*, at p. 570.)

As a general proposition, the proper method of analysis for determining whether a particular item should be considered as evidence in a CEQA matter is to determine first whether the item is part of the administrative record pursuant to subdivision (e) of section 21167.6. If the item does not qualify for inclusion in the administrative record, then its admissibility can be determined under the rules applicable to extra-record evidence. (*Madera Oversight Coalition, Inc. v. County of Madera, supra*, 199 Cal.App.4th at p. 62, citing *Eureka Citizens for Responsible Government v. City of Eureka* (2007) 147 Cal.App.4th 357, 366–367.)

DISCUSSION

With this Motion, Petitioner requests that the Administrative Record be augmented to include the following materials: 1) omitted operational records (fire, police, and code-enforcement records for the encampments) or certify that none exist; 2) documents regarding the City’s narrowed “study area”; 3) documents concerning the low barrier navigation center status; 4) internal agency communications or produce a privilege log for those withheld; 5) omitted creek-maintenance operational records; 6) written public comments and correspondence received by the City; 7) transcript of City’s own April 18, 2025 joint County-City homelessness subcommittee proceeding; and 8) that, to the extent the city has withheld or redacted materials, or holds closed-session materials bearing on this action, it should provide a privilege log, state the basis for each redaction, and identify the closed-session materials.

Petitioner's argument is that these categories are part of the administrative record pursuant to subdivision (e) of section 21167.6. If they are not, Petitioner made no argument that they should be included under the extra-record evidence standard. Therefore, the Court will only consider the former and need not make any determination of the latter.

Respondent opposes the Motion arguing that *Porterville Citizens for Responsible Hillside Development v. City of Porterville* (2007) 157 Cal.App.4th 885, 897-898 mandates rejection of Petitioner's various arguments for inclusion of documents in other City files that neither City staff nor Councilmembers considered in approving the Project here. In *Porterville*, the administrative record for a CEQA challenge to a city's approval of a development project did not include the city's own environmental impact report it had previously prepared for its general plan, because there was no evidence that the city actually considered that analysis when it approved the project.

Omitted Operational Records

The Motion seeks the City's own Fire, Police, and Code-Enforcement Records regarding City responses to homeless encampments. As the Opposition points out, Public Resources Code subdivision (e)(10), relied upon by Petitioner, contains a limitation to those written materials "included in the respondent public agency's files on the project." To the extent any such operational records were in the City's file on the project and not included in the AR, they should be. The Court understands from the City's Opposition that no such written materials were included in the City's file on the project. If this is inaccurate in any way, the City should clarify that point immediately both to the Court and Petitioner.

Documents Re Narrowed Study Area

With his Motion, Petitioner argues that documents concerning the on-parcel watercourse — its physical extent, its tidal character, its jurisdictional status, and the constraints mapping that defined or excluded it — are "relevant to the [City's] compliance with [CEQA]" within section 21167.6(e)(10). Per Petitioner, a record that includes the narrowed study but omits the materials needed to test whether the narrowing was proper is incomplete. Petitioner seeks the following categories of documents: (a) documents establishing the physical extent of the watercourse on the parcel; (b) documents concerning its tidal character; (c) documents concerning its jurisdictional status under state and federal law; and (d) the constraints mapping that defined or excluded the watercourse from the study.

The Court agrees that these documents would be part of the Administrative Record under subdivision (e)(10) and to the extent they exist in the project file, they should be produced. The Motion is therefore GRANTED as to this request.

Low Barrier Navigation Center Documents

Relying on Public Resources Code section 21167.6, subdivisions (e)(7) and (10), Petitioner argues that the Administrative Record does not include sufficient documents regarding how the interim homeless shelter will qualify as a "Low Barrier Navigation Center." Respondent

counters that Petitioner overlooks the staff report, which provides City staff's analysis of this issue. (See AR 201-206.)

To the extent any written evidence or correspondence submitted to, or transferred from the City, exists with respect to compliance with CEQA or with respect to the project, including the interim homeless shelter's qualification as a Low Barrier Navigation Center, or any written communications re the same was made available to the public during the public review period or included in the City's files on the project, they should be part of the Administrative Record. The City is not permitted to exclude such documents because it believes it has already established "substantial evidence" supporting the City's factual findings by way of production of another document.

Accordingly, the Motion is GRANTED as to this request as well.

Internal Agency Communications

Section 21167.6(e)(7) requires "[a]ll internal agency communications, including staff notes and memoranda related to the project or to compliance with" CEQA. (Pub. Res. Code, § 21167.6, subd. (e)(7).) To the extent that any such communications exist, are not privileged, and have not been included in the Administrative Record, the Motion is GRANTED. To the extent any such communications exist but are being withheld on a claim of privilege or work product, the Court recognizes the difficulty of relying on an honor system with no way of testing the legal accuracy of the claim, or determining whether the asserted privilege or work product only protects certain portions of a document. There must be some practical way to provide Petitioner with some modicum of assurance of the legitimacy of privilege and work product claims. The parties shall meet and confer on a proposed solution and present it to the Court at the hearing.

Creek-Maintenance Operational Records

The Motion seeks the City's Creek-Maintenance Operational Records. As the Opposition points out, subdivision (e)(10), relied upon by Petitioner, contains a limitation to those written materials "included in the respondent public agency's files on the project." To the extent any such operational records were in the City's file on the project and not included in the AR, they should be. The Court understands from the City's Opposition that no such written materials were included in the City's file on the project. If this is inaccurate in any way, the City should clarify that point immediately both to the Court and Petitioner.

Written Public Comments and Correspondence

The Opposition counters that the City has, in fact, included all timely submitted written public comments on the project into the Administrative Record. (See, e.g., AR 2:392-581; 9:3112-3331; 11:3770-12:3935.) For example, the November 1 email Petitioner references in his motion is included at AR510, etc.

Petitioner counters that all written comments received by the agency are part of the record of what the agency received, regardless of any later merits dispute about a comment's

timeliness; timeliness goes to a comment's weight or to exhaustion, not to whether it belongs in the record.

With this the Court agrees. (Pub. Res. Code, § 21167.6, subd. (e)(7).) All written evidence or correspondence submitted to, or transferred from, the City with respect to compliance with CEQA or with respect to the project should be part of the Administrative Record. Accordingly, the Motion is GRANTED as to this request.

The April 18, 2025 Special Joint County-City Homelessness Subcommittee Proceeding

On April 18, 2025, the City convened a noticed public meeting of the Special Joint County-City Homelessness Subcommittee, at which the Mayor and the City Manager discussed the interim-shelter project's purpose, its funding, its operational design, and its relationship to the City's camping-enforcement program. The Motion seeks the to have a transcript of that meeting, prepared by Petitioner for this litigation, included under Public Resources Code section 21167.6, subdivisions (e)(7) and (e)(10). The Opposition correctly points out that subdivision (e)(4) limits itself to transcripts or minutes of proceedings before any advisory body to the respondent public agency that were presented to the decision-making body before action on the environmental documents or on the project. Here there is no evidence the transcripts or minutes were presented to the decision making body.

Nor does it appear (e)(7) would apply as Petitioner makes it clear that he created the transcript for this lawsuit. It therefore does not qualify as "written evidence or correspondence submitted to, or transferred from, the respondent public agency." It further does not appear that the transcripts prepared by Petitioner would be deemed as "either made available to the public during the public review period or included in the respondent public agency's files on the project" under subdivision (e)(10).

For these reasons, the Motion is DENIED as to this request.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008721

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

IN THE MATTER OF:

MARK ALLEN

NATURE OF PROCEEDINGS: MOTION – OTHER: AUGMENT

RULING

Appearances are required.

Petitioner Mark Allen’s (“Petitioner”) Motion to Augment the Administrative Record is
GRANTED in part.

BACKGROUND

This case (“Ordinance Case”) involves a Writ of Mandate challenging the city of San Rafael’s (“the City” or “Respondent”) adoption of Ordinance No. 2057 on December 1, 2025. That Ordinance adopted special procedures and standards for homeless shelters, as authorized by Government Code sections 8698 through 8698.4.

The relevant history is as follows:

On November 17, 2025, the City Council for the City of San Rafael took several legislative actions to alleviate the homeless crisis it currently faces. The Council’s actions included the following:

1. Adoption of a resolution declaring a shelter crisis, pursuant to Government Code section 8698, et seq.;
2. Adoption of an urgency ordinance, and the first reading of a regular ordinance, approving reasonable local standards and procedures for homeless shelters pursuant to the same Government Code provisions;
3. Adoption of a resolution authorizing the City to purchase the property at 350 Merrydale Road for the purpose of developing both an interim homeless shelter to house up to 65 individuals, as well as to eventually develop the site with up to 80 units of permanent affordable housing; and

4. Adoption of a resolution approving an “Affordable Housing Agreement” between the City and Marin County, under which the County granted to the City \$8 million to fund the City’s acquisition of 350 Merrydale Road and its development of affordable housing on that site.

(See generally, Administrative Record (“AR”), 1:7-12, 76-102.) The City Council found each of these actions was exempt from CEQA. The City filed its Notice of Exemption the following day, on November 18, 2025. (AR 1:7-75.) The alternative CEQA exemptions the City identified included statutory exemptions applicable to homeless shelters and “low barrier navigation centers.” (AR 1:10-12.) In addition, the City prepared a 33-page study dated November 3, 2025, documenting how the project qualified for CEQA exemptions applicable to projects consistent with its General Plan (CEQA Guidelines § 15183) and to infill development projects (CEQA Guidelines § 15332). (AR 1:13-46.)

On November 26, 2025, Petitioner filed the related action, *Allen v. City of San Rafael*, Case No. CV0008353 (“Merrydale Road Case”), which challenges the City’s approval of the resolutions approving the Affordable Housing Agreement with the County and the City’s purchase of 350 Merrydale Road.

On December 1, 2025, the Council then had the second reading of, and adopted, the ordinance which was then codified as Ordinance No. 2057. (AR2 1:9902-9909.) On December 30, 2025, Petitioner filed the present action, the Ordinance Case, *Allen v. City of San Rafael*, Case No. CV0008721.

The City has since prepared and certified the Administrative Records for both related actions, lodging them with the Court on June 17, 2026. The Administrative Record for both cases consists of Volumes 1 through 51, Bates numbered AR 00007 through 09847, and is cited herein as “AR” followed by the volume and page numbers. The Administrative Record for this action also includes one additional volume of documents containing documentation from November 18 through December 1, 2026, Bates numbered 09900 through 09956. That additional volume is cited herein as “AR2.”

Pursuant to the stipulation of the parties, the Court has coordinated both related actions, with simultaneous briefing schedules and a joint hearing on the merits scheduled for November 18, 2026, at 1:30 p.m. In the meantime, Petitioner has filed Motions to Augment the Administrative Record in both cases.

LEGAL STANDARD

The contents of the administrative record in a CEQA case are governed by Public Resources Code section 21167.6(e). (*San Francisco Tomorrow v. City and County of San Francisco* (2014) 228 Cal.App.4th 1239, 1258.) Section 21167.6(e) states that the administrative record shall include:

- (1) All project application materials.

(2) All staff reports and related documents prepared by the respondent public agency with respect to its compliance with the substantive and procedural requirements of this division and with respect to the action on the project.

(3) All staff reports and related documents prepared by the respondent public agency and written testimony or documents submitted by any person relevant to any findings or statement of overriding considerations adopted by the respondent agency pursuant to this division.

(4) Any transcript or minutes of the proceedings at which the decision-making body of the respondent public agency heard testimony on, or considered any environmental document on, the project, and any transcript or minutes of proceedings before any advisory body to the respondent public agency that were presented to the decision-making body before action on the environmental documents or on the project.

(5) All notices issued by the respondent public agency to comply with this division or with any other law governing the processing and approval of the project.

(6) All written comments received in response to, or in connection with, environmental documents prepared for the project, including responses to the notice of preparation.

(7) All written evidence or correspondence submitted to, or transferred from, the respondent public agency with respect to compliance with this division or with respect to the project.

(8) Any proposed decisions or findings submitted to the decision-making body of the respondent public agency by its staff, or the project proponent, project opponents, or other persons.

(9) The documentation of the final public agency decision, including the final environmental impact report, mitigated negative declaration, or negative declaration, and all documents, in addition to those referenced in paragraph (3), cited or relied on in the findings or in a statement of overriding considerations adopted pursuant to this division.

(10)(A)(i) Any other written materials relevant to the respondent public agency's compliance with this division or to its decision on the merits of the project, including the initial study, any drafts of any environmental document or portions of the initial study or drafts that have been released for public review, and copies of studies or other documents relied upon in any environmental document prepared for the project and either made available to the public during the public review period or included in the respondent public agency's files on the project, and all internal agency communications, including staff notes and memoranda related to the project or to compliance with this division, but not including

communications that are of a logistical nature, such as meeting invitations and scheduling communications, except that any material that is subject to privileges contained in the Evidence Code, or exemptions contained in the California Public Records Act (Division 10 (commencing with Section 7920.000) of Title 1 of the Government Code), shall not be included in the record of proceedings under this paragraph, consistent with existing law.

Section 21167.6(e) “contemplates that the administrative record will include pretty much everything that ever came near a proposed development or to the agency's compliance with CEQA in responding to that development.” (*County of Orange v. Superior Court* (“*County of Orange*”) (2003) 113 Cal.App.4th 1, 8.)

The trial court makes the determination of the completeness of the administrative record. (*Madera Oversight Coalition, Inc. v. County of Madera* (2011) 199 Cal.App.4th 48, 63, disapproved on other grounds by *Neighbors for Smart Rail v. Exposition Metro Line Construction Authority* (2013) 57 Cal.4th 439.) Specifically, the trial court resolves disputes between the parties about what should be included in, or excluded from, the administrative record. (*Ibid.*)

In CEQA cases, the general rule is that a hearing on the petition for writ of mandamus is conducted solely on the record of the proceeding before the administrative agency. (*Toyota of Visalia v. New Motor Vehicle Bd.* (1987) 188 Cal. App.3d 872, 881; see *World Business Academy v. California State Lands Commission* (2018) 24 Cal.App.5th 476, 494.) The court can only admit additional evidence in limited circumstances. Specifically, extra-record evidence may be considered only if it is shown that (1) the evidence could not with reasonable diligence have been presented at the administrative hearing, or (2) was improperly excluded at that hearing. (*Fairfield v. Superior Court of Solano County* (1975) 14 Cal. 3d 768, 771-72; see e.g. *W. States Petroleum Assn. v. Superior Ct.* (1995) 9 Cal.4th 559, 578.) In addition, extra-record evidence is admissible only if it relevant. (*Id.*, at p. 570.)

As a general proposition, the proper method of analysis for determining whether a particular item should be considered as evidence in a CEQA matter is to determine first whether the item is part of the administrative record pursuant to subdivision (e) of section 21167.6. If the item does not qualify for inclusion in the administrative record, then its admissibility can be determined under the rules applicable to extra-record evidence. (*Madera Oversight Coalition, Inc. v. County of Madera, supra*, 199 Cal.App.4th at p. 62, citing *Eureka Citizens for Responsible Government v. City of Eureka* (2007) 147 Cal.App.4th 357, 366–367.)

DISCUSSION

With this Motion, Petitioner requests that the administrative record be augmented to include the following materials: 1) omitted operational records (fire, police, and code-enforcement records for the encampments whose conditions supplied the predicate for Ordinance 2057) or certify that none exist; 2) internal agency communications relating to Ordinance 2057 and its CEQA compliance, or produce a privilege log for those withheld; 3) documents bearing on whether the shelter qualifies as a Low Barrier Navigation Center; 4) the April 18, 2025 Special Joint County-City Homelessness Subcommittee proceeding transcript; 5) exhibits filed in

Page 4 of 7

other camping-ordinance proceedings, Case Nos. CV0005691 and CV0006338; and 6) that, to the extent the record contains withheld or redacted materials, the City produce a privilege log adequate to permit assessment of each withheld document and identify the legal basis for each redaction.

Petitioner's argument is that these categories are part of the administrative record pursuant to subdivision (e) of section 21167.6. If they are not, Petitioner made no argument that they should be included under the extra-record evidence standard. Therefore, the Court will only consider the former and need not make any determination of the latter.

Respondent opposes the Motion arguing that *Porterville Citizens for Responsible Hillside Development v. City of Porterville* (2007) 157 Cal.App.4th 885, 897-898 mandates rejection of Petitioner's various arguments for inclusion of documents in other City files that neither City staff nor Councilmembers considered in approving the Project here. In *Porterville*, the administrative record for a CEQA challenge to a city's approval of a development project did not include the city's own environmental impact report it had previously prepared for its general plan, because there was no evidence that the city actually considered that analysis when it approved the project.

Omitted Operational Records

The Motion seeks the City's own Fire, Police, and Code-Enforcement Records for the Encampments "whose conditions supplied the factual predicate for Ordinance 2057." As the Opposition points out, subdivision (e)(10), relied upon by Petitioner, contains a limitation to those written materials "included in the respondent public agency's files on the project." To the extent any such operational records were in the City's file on the project and not included in the AR, they should be. The Court understands from the City's Opposition that no such written materials were included in the City's file on the project. If this is inaccurate in any way, the City should clarify that point immediately both to the Court and Petitioner.

Internal Agency Communications

It appears Petitioner's belief that Internal Agency Communications were not part of the record was due to a misunderstanding about the scope of the record in this case; and that such misunderstanding has been resolved. (See Reply p. 3:24-28.) The remaining dispute is therefore limited to internal City communications relating to Ordinance 2057 in a "November 17 to December 1, 2025 window." (Pub. Res. Code, § 21167.6, subd. (e)(7).) To the extent that any such communications exist and have not been included in the Administrative Record, the Motion is GRANTED. To the extent any such communications exist but are being withheld on a claim of privilege or work product, the Court recognizes the difficulty of relying on an honor system with no way of testing the legal accuracy of the claim, or determining whether the asserted privilege or work product only protects certain portions of a document. There must be some practical way to provide Petitioner with some modicum of assurance of the legitimacy of privilege and work product claims. The parties shall meet and confer on a proposed solution and present it to the Court at the hearing.

Low Barrier Navigation Center Documents

Relying on Public Resources Code section 21167.6, subdivisions (e)(7) and (10), Petitioner argues that the Administrative Record does not include sufficient documents regarding how the interim homeless shelter will qualify as a “Low Barrier Navigation Center.” Respondent counters that Petitioner overlooks the staff report, which provides City staff’s analysis of this issue. (See AR 201-206.)

To the extent any written evidence or correspondence submitted to, or transferred from the City, exists with respect to compliance with CEQA or with respect to the project, including the interim homeless shelter’s qualification as a Low Barrier Navigation Center, or any written communications re the same was made available to the public during the public review period or included in the City’s files on the project, they should be part of the Administrative Record. The City is not permitted to exclude such documents because it believes it has already established “substantial evidence” supporting the City’s factual findings by way of production of another document.

Accordingly, the Motion is GRANTED as to this request as well.

The April 18, 2025 Special Joint County-City Homelessness Subcommittee Proceeding

On April 18, 2025, the City convened a noticed public meeting of the Special Joint County-City Homelessness Subcommittee, at which the Mayor and the City Manager discussed the interim-shelter project’s purpose, its funding, its operational design, and its relationship to the City’s camping-enforcement program. The Motion seeks the to have a transcript of that meeting, prepared by Petitioner for this litigation, included under Public Resources Code section 21167.6, subdivisions (e)(7) and (e)(10). The Opposition correctly points out that subdivision (e)(4) limits itself to transcripts or minutes of proceedings before any advisory body to the respondent public agency that were presented to the decision-making body before action on the environmental documents or on the project. Here there is no evidence the transcripts or minutes were presented to the decision making body.

Nor does it appear (e)(7) would apply as Petitioner makes it clear that he created the transcript for this lawsuit. It does therefore does not qualify as “written evidence or correspondence submitted to, or transferred from, the respondent public agency.” It further does not appear that the transcripts prepared by Petitioner would be deemed as “either made available to the public during the public review period or included in the respondent public agency’s files on the project.”

For these reasons, the Motion is DENIED as to this request.

Exhibits Filed in Other Camping-Ordinance Proceedings, Case Nos. CV0005691 and CV0006338

On Reply, Petitioner limits this request to “correspondence Petitioner sent to the City Council and the Office of the City Attorney between November 17 and December 1, 2025, excluding documents filed only in other litigation and “not submitted to the City as part of its administrative process”, “whatever parallel use they might have had.” (Reply p. 5:18-23.) The

City should appear at the hearing prepared to comment on the propriety of the request in its limited form.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNgEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26//26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009000

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: JILL M. BISHOP

vs.

DEFENDANT: SMITH RANCH NURSING &
REHABILITATION CENTER, ET AL

NATURE OF PROCEEDINGS: 1) DEMURRER
2) MOTION - STRIKE

RULING

Defendants' demurrer to the Third Cause of Action is sustained with leave to amend.
Defendants' motion to strike is granted with leave to amend.

Allegations in Plaintiff's Complaint

Plaintiff was admitted to Defendant Smith Ranch Nursing & Rehabilitation Center, erroneously sued as Smith Ranch Skilled Nursing & Rehabilitation Center ("Smith Ranch"), on February 9, 2025, for skilled nursing and rehabilitation services to recover from a sacral fracture. On February 13, 2025, Plaintiff experienced severe abdominal pain and was transferred to the Emergency Department at Defendant Novato Community Hospital ("NCH"). While attempting to use a commode in the emergency room, Plaintiff slipped and braced herself against the commode, striking her chest and ribs. She immediately complained of rib pain. A chest X-ray was performed and she returned to Smith Ranch that same day.

Over the next few days at Smith Ranch, Plaintiff's condition deteriorated significantly. Her abdominal pain worsened, she experienced severe distention, and she did not have a bowel movement for four days. Despite Plaintiff's and her son's repeated requests for medical attention on February 19, 2025, nursing staff at Smith Ranch failed to provide timely intervention. The son called the nurses' station and it rang more than 10 times with no answer. Staff told Plaintiff's son that the decision to call 911 was up to him. Plaintiff's son called 911 and Plaintiff was transported by ambulance to NCH. Upon her arrival of NCH, Plaintiff presented with tachycardia and critically low oxygen saturation. CT imaging revealed a massive hepatic subcapsular hematoma, a liver laceration, internal bleeding with hemoperitoneum, and a new nondisplaced rib fracture. Blood tests showed severe blood loss. Plaintiff required 70 minutes of critical care for trauma and shock, a blood transfusion, and an emergency transfer to

Marin General Hospital Trauma Unit for multiple surgeries. Plaintiff sustained severe and permanent injuries.

The First Cause of Action against all defendants alleges medical negligence, the Second Cause of Action against all defendants alleges general negligence, and the Third Cause of Action against Smith Ranch and Defendants Life Generations Healthcare LLC, erroneously sued as Generations HC, LLC (“Generations”) alleges elder abuse and neglect.¹ In her Third Cause of Action, Plaintiff alleges that Smith Ranch and Generations are liable based on the following conduct: (1) failing to provide adequate medical care for Plaintiff’s physical health needs on February 19, 2025, (2) failing to protect Plaintiff from health and safety hazards, including the hazard presented by her deteriorating medical condition and the development of a life-threatening internal hemorrhage, (3) failing to respond to Plaintiff’s repeated requests for medical attention and pain relief on February 19, 2025, (4) failing to answer telephone calls from Plaintiff’s son who was attempting to obtain medical care for his mother, (5) failing to promptly assess Plaintiff’s medical condition when her son reported she was in severe pain with significant abdominal distention, (6) instructing Plaintiff, who had a recent sacral fracture and 50% weight-bearing restriction, to “get up and move around” before providing medical treatment, (7) telling Plaintiff she “needed to follow protocol” and handing her papers to read while she was in severe medical distress, (8) abdicating responsibility for medical decision-making by repeatedly telling Plaintiff’s family member that the decision to call 911 was “up to him,” (9) failing to call for emergency medical services or arrange emergency transport despite signs of medical crisis, (10) failing to provide adequate assistance with personal hygiene and dignity, leaving Plaintiff “half naked” without blankets while she was in severe distress and regurgitating, (11) failing to provide adequate nursing care, monitoring, and assessment following Plaintiff’s return from the emergency department on February 13, 2025, (12) failing to recognize warning signs of serious internal injury, including worsening abdominal pain and distention over multiple days, (13) failing to maintain adequate staffing levels to respond to resident needs and emergency situations, (14) failing to implement and enforce policies and procedures to protect residents from foreseeable medical emergencies, and (15) failing to provide the medical care, supervision, and protection that a reasonable skilled nursing facility would provide to a 72-year-old patient with known osteoporosis, recent fractures, multiple medical comorbidities, and documented fall risk.

Smith Ranch and Generations (“Defendants”) demur to the Third Cause of Action.

Demurrer

Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim.

¹ On May 28, 2026, Plaintiff dismissed the Second Cause of Action as to Smith Ranch and Generations.

(*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099 [citation and internal quotations omitted].) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe*, 42 Cal.4th at 551, fn. 5.) The court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Discussion

Defendants demur to the Third Cause of Action for elder abuse on the ground that at best, Plaintiff pleads a cause of action for professional negligence arising out of a single isolated event on a single day in February 2025. They contend that the specific facts alleged do not support Plaintiff’s allegations of neglect and recklessness.

A cause of action for elder abuse and neglect arises out of the Elder Abuse and Dependent Adult Civil Protection Act (the “Act”), found in Welfare & Institutions Code Section 15600 et seq. The Act contains certain enhanced remedies for a plaintiff who proves abuse of an elder. Specifically, a plaintiff who proves by clear and convincing evidence both that a defendant is liable for physical abuse, neglect or financial abuse, and that the defendant is guilty of recklessness, oppression, fraud, or malice in the commission of such abuse, may recover attorney fees and costs. (*Worsham v. O’Connor Hospital* (2024) 226 Cal.App.4th 331, 335.) “Recklessness is a subjective state of culpability greater than simple negligence, which has been described as a deliberate disregard of the high degree of probability that an injury will occur. [citations.] Recklessness, unlike negligence, involves more than inadvertence, incompetence, unskillfulness, or a failure to take precautions but rather rises to the level of a conscious choice of a course of action . . . with knowledge of the serious danger to others involved in it.” (*Fenimore v. Regents of the University of California* (2016) 245 Cal.App.4th 1339, 1347 [internal quotations omitted].) “[T]he Act does not provide liability for simple or gross negligence by health care providers.” (*Ibid.*)

The term “neglect” is defined in Section 15610.57 as including “[t]he negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise.” (Wel. & Inst. Code § 15610.57(a).) “Neglect includes, but is not limited to, all of the following: (1) Failure to assist in personal hygiene, or in the provision of food, clothing, or shelter. (2) Failure to provide medical care for physical and mental health needs . . . (3) Failure to protect from health and safety hazards. (4) Failure to prevent malnutrition or dehydration . . .” (Wel. & Inst. Code § 15610.57(a).) “[S]everal factors . . . must be present for conduct to constitute neglect within the meaning of the Elder Abuse Act and thereby trigger the enhanced remedies available under the Act. The plaintiff must allege (and ultimately prove by clear and convincing evidence) facts establishing that the defendant: (1) had responsibility for meeting the basic needs of the elder or dependent adult, such as nutrition, hydration, hygiene or medical care; (2) knew of conditions that made the elder or dependent adult unable to provide for his or her own basic needs; and (3) denied or withheld goods or services necessary to meet the elder or dependent adult’s basic needs, either with knowledge that injury was substantially certain to befall the elder or dependent adult (if the plaintiff alleges oppression, fraud or malice) or with conscious disregard of the high probability of such injury (if the plaintiff alleges recklessness) . . . the facts constituting the neglect and establishing the causal link between the neglect and the injury must be pleaded with

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particularity, in accordance with the pleading rules governing statutory claims.” (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 406-407 [citations and internal quotations omitted].)

“‘[N]eglect’ within the meaning of Welfare and Institutions Code section 15610.57 covers an area of misconduct distinct from ‘professional negligence.’ As used in the Act, neglect refers not to the substandard performance of medical services but, rather, to the ‘failure of those responsible for attending to the basic needs and comforts of elderly or dependent adults, regardless of their professional standing, to carry out their custodial obligations.’ Thus, the statutory definition of ‘neglect’ speaks not of the *undertaking* of medical services, but of the failure to *provide* medical care.” (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 783 [citations omitted] [emphasis in original].)

Defendants argue that Plaintiff’s allegations sound in professional negligence, not elder abuse, because they center on deficiencies in medical assessment, monitoring, treatment, and intervention and arise from the rendition of skilled nursing skills rather than the denial of basic custodial needs. As a result, Defendants argue, these allegations fall outside of the scope of “neglect” and enhanced remedies under the Act. Plaintiff argues that she adequately alleges neglect because she alleges that a custodial facility failed to respond to a known, obvious, worsening medical emergency.

Here, the Complaint essentially alleges that Defendants failed to provide adequate medical attention to her on February 19, when she was in medical distress, and told her son on February 19 that it was up to him whether to call 911. The remainder of Plaintiff’s allegations are generally legal conclusions and language from Section 15610.57, without specific facts to support those allegations. There are no specific allegations that Defendants failed to assist in personal hygiene or provide food, shelter or clothing, that Defendants failed to provide or denied medical care that Defendants themselves should or could have provided, or that Defendants failed to protect Plaintiff from any particular health and safety hazards. Plaintiff does not allege what medical care or treatment could or should have been provided by Defendants but was not. With respect to Plaintiff’s allegations about the six days preceding February 19th, she does not allege what Defendants knew about any particular condition Plaintiff was in or what Defendants could or should have done differently during those six days. Plaintiff merely alleges that her condition worsened over that time frame and that Defendants failed to provide timely intervention on February 19th despite Plaintiff’s son’s requests that day. (See Complaint, ¶¶ 16, 17.) Facts supporting an elder abuse claim must be alleged with particularity. (*Covenant Care*, 32 Cal.4th at p. 790; *Carter*, 198 Cal.App.4th at p. 407.)

Plaintiff’s Complaint is not like the complaint in *Fenimore*, *supra*, upon which Plaintiff relies. In *Fenimore*, the plaintiffs sued the defendant hospital after their family member, George, fell and suffered a hip injury and never recovered. When George was admitted to the hospital, the hospital was told that George suffered from multiple conditions including dementia and Alzheimer’s disease, had a history of wandering that led to numerous falls, and that he had been transferred from another facility on a 5150 hold and was an extreme fall risk. The hospital was also aware that George required 24 hour supervision, assistance with ambulation and transferring, safety devices to prevent accidents, interventions to prevent further falls, and assistance with daily activities. Just minutes after entering the hospital, George was left

unattended and fell. The hospital tried to conceal the fall from the family, giving them conflicting stories, and did not adequately assess George after the fall. An x-ray was taken after staff indicated leg pain on his record and noted George was wincing when bending forward and lifting his knee. George was not walking at the time. The hospital did not notify George's family of his change in condition or need for evaluation. Six days after the fall, after he had been transferred for other reasons, x-rays revealed that George had a left hip fracture. He had surgery on his hip but passed away a few months later.

The plaintiffs alleged that the hospital failed to assess George's fall risk and implement an adequate plan of care for him, complete with interventions or other measures to prevent him from falling such as hip guards or devices to prevent patients from falling out of a wheelchair. The plaintiffs also alleged that the hospital violated several sections of the California Code of Regulations applicable to acute psychiatric hospitals, such as regulations requiring proper staff training, a written patient care plan, and a sufficient number of staff on hand for the safety of patients. The plaintiffs alleged that these regulatory violations caused injury to George and that the hospital acted with reckless disregard for the health and safety of George and other residents. The plaintiffs further alleged that the hospital had a pattern and practice of understaffing and undertraining its staff to cut costs, which foreseeably resulted in the abuse and neglect of its residents, and consciously chose not to increase staff numbers or increase training. The hospital knew that insufficient staff in number and competency would lead to it not meeting patients' needs and injuries to patients would be inevitable. The plaintiffs alleged that had there been sufficient staff, George would have received proper supervision and assistance and would not have suffered his injuries.

The *Fenimore* court held that George's initial fall and the hospital's reaction to that fall, and the treatment of George's hip, was possibly incompetence or unskillfulness but not recklessness. However, the allegations that the hospital's regulatory violations constituted elder abuse were sufficient to survive the hospital's demurrer. Specifically, the allegations that the hospital had a pattern and knowing practice of improperly understaffing to cut costs, and had the hospital been staffed sufficiently, George would have been properly supervised and would not have suffered injury. (*Id.* at pp. 1348-1349.) The court noted that the plaintiffs "alleged more than a simple understaffing here. The FAC identified the staffing regulation the Hospital allegedly violated and suggested a knowing pattern of violating it constituted recklessness." (*Id.* at p. 1350.) The court concluded that "[r]eckless understaffing might be neglectful under the Act even if it is not a fundamental failure to provide medical care." (*Id.* at p. 1351.)

Thus in *Fenimore*, there were detailed allegations in the complaint identifying specific staffing regulations for acute psychiatric hospitals that had been violated, that there was a knowing pattern to violate those regulations to cut costs, and that the violations of those regulations caused injury to George. In contrast, Plaintiff's Complaint here only generally alleges that Defendants "negligently provid[ed] inadequate levels of nursing care and staffing" (§25), negligently supervised staff (§26), "[f]ailed to maintain adequate staffing levels to respond to resident needs and emergency situations" (§49m), and had "inadequate staffing, failure to implement emergency response protocols, and culture of prioritizing administrative procedures over patient safety" (§51). There are insufficient facts alleged to support these allegations. For example, Plaintiff does not identify any regulations or rules that require a certain level of

staffing, the staffing that existed at the time Plaintiff was there, or the staffing that Plaintiff contends should have existed at the time.

The demurrer is sustained on the ground that Plaintiff fails to plead sufficient facts to support her allegations of neglect and recklessness. Because the demurrer is sustained on this basis, the Court does not address Defendants' additional arguments in support of their demurrer.

Motion to Strike

Defendants move to strike Plaintiff's requests for enhanced remedies (Complaint, p. 14:20-24) on the ground that Plaintiff has failed to allege a cause of action for elder abuse. As the Court has sustained the demurrer to that cause of action, the Court also grants the motion to strike.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjE0SHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/26/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009539

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: PAUL SUNAK

vs.

DEFENDANT: USHA SUNAK, ET AL

NATURE OF PROCEEDINGS: PRELIMINARY INJUNCTION

RULING

Plaintiff Paul Sunak's ("Plaintiff") motion for a preliminary injunction is DENIED.

BACKGROUND

This is a dispute between family members over possession of real property. Plaintiff alleges that beginning in November 2015, he leased real property at 5 Harbor Drive in Novato from Defendants Usha and Gurbax Sunak, who are Plaintiff's parents. (FAC,¹ ¶ 17 & Ex. B [commercial lease]; Sunak Dec., ¶ 2.) According to Plaintiff, the 5 Harbor Drive property "is primarily a commercial property with attached space that can be used as residential living space." (FAC, ¶ 16.) Plaintiff leased the property for business purposes. (*Id.* at ¶ 18; see also Sunak Dec., ¶ 3.) He alleges that he renewed his lease in August 2025. (FAC, ¶ 20.)

Plaintiff asserts that he and his parents contemplated that the property would be developed into a gas station and/or a marijuana dispensary. (FAC, ¶ 21.) They allegedly agreed that Defendants would lease a portion of the property to a third-party tenant to generate income while plans to develop the property into a gas station or dispensary were underway. (*Id.* at ¶ 22.) In December 2015, Defendants leased a garage on the property to A&C Towing and Transportation, Inc. on a month-to-month basis. (*Id.* at ¶ 23 & Ex. D.) According to the FAC, A&C Towing has since vacated the garage or transferred its interest in the garage to Valley Towing. (*Id.* at ¶ 28.)

¹ At the time Plaintiff filed this motion, the operative complaint was the original complaint, not the FAC. The FAC has not made any changes that are significant for purposes of this motion. Under these circumstances, Plaintiff's amending the complaint does not affect the order to show cause nor moot his motion for a preliminary injunction. (See *Ramos v. United Slate, Tile & Composition Roofers, Damp & Waterproof Workers Ass'n, Local No. 40 et al.*, 113 Cal.App.2d 31, 36.)

Plaintiff alleges that in early 2022, he began to have unspecified “personal disagreements” with Defendants. (FAC, ¶ 26.) In September 2022, Defendants allegedly repudiated their lease with Plaintiff and their agreement to develop the property into a gas station. (*Ibid.*) Plaintiff claims they broke the locks on his portion of the property in order to keep him out and have denied him entry since. (*Ibid.*)

According to the complaint, the parties’ lease agreement relating to 5 Harbor Drive in Novato was “one of several related and integrated agreements regarding sharing and management of multiple real properties.” (FAC, ¶ 61.) Plaintiff claims Defendants permitted him to live at a residential property they owned in Vallejo in exchange for \$75,000 per year. (*Ibid.*) He alleges that Defendants wrongfully ejected him from the Vallejo property “by throwing [him] out on the street, without a valid writ of possession or legal justification, using armed ‘security guards[,]’” adding that they interfered with \$300,000 worth of his personal possessions during this ejection. (*Id.* at ¶ 62.)

The FAC asserts a cause of action for breach of the lease agreement relating to 5 Harbor Drive. (FAC, ¶¶ 35-38.) Plaintiff requests both specific performance and injunctive relief in connection with this claim. (*Id.* at ¶¶ 45, 51, 57-58.) He further asserts claims for breach of the implied covenant of quiet enjoyment relating to 5 Harbor Drive (*id.* at ¶¶ 67-70); wrongful eviction from both 5 Harbor Drive and the Vallejo property (*id.* at ¶¶ 78-81); conversion, based on Defendants’ allegedly taking possession of rental funds from A&C Towing and Valley Towing that properly belonged to Plaintiff (*id.* at ¶¶ 96-97); tortious interference with business relations, on the theory that Defendants interfered with Plaintiff’s entitlement to A&C Towing’s rent payments and that Defendants’ kicking Plaintiff out of 5 Harbor Drive interfered with his business (*id.* at ¶¶ 104-109); conversion, based on Defendants’ allegedly interfering with Plaintiff’s possessions when ejecting him from the Vallejo property (*id.* at ¶¶ 117-118); and fraud, on the theory that Defendants made false representations to induce Plaintiff into entering into the parties’ agreements regarding 5 Harbor Drive and the Vallejo property (*id.* at ¶¶ 123-125).

Plaintiff now seeks a preliminary injunction requiring Defendants to give him possession of 5 Harbor Drive, refrain from interfering with that possession, and refrain from giving any third party a right to possess or occupy that property in a manner inconsistent with Plaintiff’s rights under the lease. (See Plntf.’s Proposed OSC.)

LEGAL STANDARD

A preliminary injunction may be granted, among other circumstances, “[w]hen it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action.” (Code Civ. Proc., § 526, subds. (a), (b).) The purpose of a preliminary injunction is to preserve the status quo until a final determination on the merits. (*Continental Baking Co. v Katz* (1968) 68 Cal.2d 512, 528.) The determination of whether to grant a preliminary injunction rests in the sound discretion of the trial court. (*Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd.* (1994) 23 Cal.App.4th 1459, 1470 (“*Tahoe Keys*”).)

Motions for a preliminary injunction must be based on a verified complaint or on declarations. (Code Civ. Proc., § 527, subd. (a).) Trial courts evaluate two interrelated factors

when deciding whether to issue a preliminary injunction. (*Pro-Family Advocates v. Gomez* (1996) 46 Cal.App.4th 1674, 1680.) The first is the likelihood that the moving party will prevail at trial. (*Id.* at pp. 1680-1681.) The second is the interim harm the movant would likely sustain if the injunction were denied as compared to the harm the opposing party would likely suffer if the injunction were issued. (*Id.* at p. 1681.) “[T]he greater the [movant’s] showing on one” of the two preliminary injunction factors, “the less must be shown on the other to support an injunction.” (*Jamison v. Department of Transp.* (2016) 4 Cal.App.5th 356, 361-62.) The burden is on the moving party “to show all elements necessary to support issuance of a preliminary injunction.” (See *O’Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.)

DISCUSSION

Mandatory preliminary injunctions, those that require a defendant to perform an affirmative act that changes the position of the parties, are rarely granted. “The granting of a mandatory injunction pending trial is not permitted except in extreme cases where the right thereto is clearly established.” (*Teachers Ins. & Annuity Ass’n v. Furlotti* (1999) 70 Cal.App.4th 1487, 1493 [citation and internal quotations omitted]; see also *Davenport v. Blue Cross of California* (1997) 52 Cal.App.4th 435, 446.) Plaintiff is seeking a mandatory injunction.

“The scope of available preliminary [injunctive] relief is necessarily limited by the scope of the relief likely to be obtained at trial on the merits.” (*Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 442.) This means that for a court to award a preliminary injunction, the nature of the injunction must be tied to the nature of the plaintiff’s claims. The plaintiff cannot request by preliminary injunction relief which, while it may have some relation to the facts of his lawsuit, is substantively unrelated to his claims or exceeds the scope of the relief he seeks in the case.

Here, Plaintiff is requesting that the Court issue a preliminary injunction granting him possession of the “entire[ty]” of 5 Harbor Drive in Novato, “including both the commercial and residential portions thereof[,]” and restraining Defendants from interfering with such possession. (Plntff.’s Proposed OSC.) Since filing the moving papers, Plaintiff has stated that he seeks narrower relief and only wants possession of “the residential portion of the property” via preliminary injunction. (Plntf.’s Dec. in Opp. to Defs.’ Special Motion to Strike [filed July 17, 2026], ¶ 19.) Either way, the relief sought exceeds the scope of the access to 5 Harbor Drive Plaintiff could obtain if he won his lawsuit.

Plaintiff’s entitlement to possession of 5 Harbor Drive is based on the commercial lease agreement between him and his parents. (See FAC, ¶¶ 17, 20, 26, 35-38 [alleging breach of the lease], 41, 45-51 [requesting specific performance of the lease], 67-70 [breach of the implied covenant of quiet enjoyment claim based on the lease], 76-80 [wrongful eviction claim based on the lease] & Exs. B [commercial lease], C [August 2025 renewal].) Pursuant to that lease, Plaintiff did not rent the entirety of the property at 5 Harbor Drive. He rented approximately 70% of the total square footage of rentable space at the property, an area expressly limited to the garage and the parking lot(s). (See FAC, Ex. B, §§ 1, 41 [“Rented premises include garage area and parking lots. Excluding premises needed for operation of Rossi’s Black Point Station, which operates convenient [sic] store and deli. Lease area is garage and the parking lot.”].)

Plaintiff has stated in a sworn declaration that the portion of 5 Harbor Drive he is trying to take possession of via preliminary injunction “IS NOT” the garage, but instead “the residential portion of the property.” (Plntf.’s Dec. in Opp. to Defs.’ Special Motion to Strike, ¶ 19.) Based on Plaintiffs’ depiction of the premises (*Ibid.* [referring the Court to Exhibit A to the FAC; FAC, Ex. A), what Plaintiff refers to as the “residential portion”² is affiliated with the deli/market at the property and so is not within the area Plaintiff rented according to the express terms of the commercial lease. (FAC, Ex. B, § 41; see also Usha Sunak Dec., ¶ 14.) Plaintiff cannot obtain possession of the “residential portion” of 5 Harbor Drive even if he is ultimately successful in this lawsuit to enforce his rights under the lease, so he cannot obtain it by preliminary injunction. His entitlement to that portion of the property is simply not at issue in this case on the face of the complaint, and his requested preliminary injunction is not tailored to the nature and scope of his lawsuit. It does not make sense to assess Plaintiff’s likelihood of success on the merits under these circumstances, because the potential success of his claims has no bearing on whether he will ultimately be found entitled to relief consistent with what he seeks via preliminary injunction.

Plaintiff’s showing of hardship is based primarily on his and his family’s difficulty finding housing. Plaintiff’s moving papers explain that before this dispute began, he, his wife, and his three children were living in a home in Vallejo belonging to his parents. (Plntf.’s Dec. in Supp. of Mot. for TRO, ¶¶ 2-3, 13.) Plaintiff states that his parents wrongfully evicted the family. (*Id.* at ¶ 13.) Plaintiff and his family moved into a converted garage on a friend’s property in Contra Costa County. (*Id.* at ¶ 15.) That property was subsequently red-tagged, and the owner commenced eviction proceedings against Plaintiff. (*Ibid.*) Plaintiff’s moving papers explain that he seeks a preliminary injunction giving him access to 5 Harbor Drive so that he can house his family there, because at the time he filed the moving papers on May 12, he expected that his family would be displaced from the garage in Contra Costa County, would have no realistic hope of finding alternative housing, and would be homeless. (*Id.* at ¶¶ 17-18, 23.) This exigency has passed. As of at least mid-July, Plaintiff and his family have had housing. (See Plntf.’s Dec. in Opp. to Defs.’ Special Motion to Strike, ¶ 18.) To the extent Plaintiff’s motion is also based on irreparable harm to his business interests due to loss of access to 5 Harbor Drive (see Memorandum, p. 10), Plaintiff has not provided evidence of any concrete, non-speculative business opportunity he stands to imminently lose due to his loss of access to this property.

The motion for a preliminary injunction is DENIED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

² Defendants offer evidence that no portion of the property is equipped for residential living. (Usha Sunak Dec., ¶¶ 16-22.) According to Defendants, the area Plaintiff calls the “residential portion” consists of stockrooms serving the deli/market of the property and a small bathroom with a toilet and a sink. (*Id.* at ¶¶ 17-19.) The tiled shower area in that bathroom is nonfunctional and is used to store cleaning equipment. (*Id.* at ¶ 19 & Ex. B.) There is no kitchen, only a three-compartment sink for washing dishes and produce. (*Id.* at ¶ 21.)

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjjEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>